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Case Number: 25VECV00775 Hearing Date: September 16, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MOHSEN BALADEHEI, an individual,

Plaintiff,

vs.

BEHNOOSH NASSERZAREH, an individual; and DOES 1 through 25, inclusive.

Defendant.

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CASE NO.: 25VECV00775

ORDER SUSTAINING CROSS-DEFENDANT'S DEMURRER

ORDER DENYING CROSS-DEFENDANT'S MOTION TO STRIKE

BEHNOOSH NASSERZARE, an individual,

Cross-Complainant,

vs.

MOHSEN BALADEHEI, an individual.

Cross-Defendant.

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I. BACKGROUND

This case arises out of a financial transaction between Plaintiff Mohsen Baladehei ("Baladehei") and Defendant Behnouush Nasserzareh ("Nasserzareh") for which Plaintiff alleges Defendant failed to pay back upwards of \$500,000.

Baladehei now demurs and moves to strike portions of the Cross-Complaint.

II. PROCEDURAL HISTORY

On February 11, 2025, Baladehei filed its Complaint, alleging (1) Breach of Contract and (2) Fraud.

On June 5, 2025, the Court sustained Nasserzareh's Demurrer as to Baladehei's first cause of action for breach of contract and all three theories of its second cause of action for fraud with leave to amend.

On June 27, 2025, Baladehei filed a First Amended Complaint ("FAC") alleging (1) Breach of Contract and (2) Fraud.

On November 26, 2025, the Court overruled Nasserzareh's Demurrer and denied his Motion to Strike.

On December 24, 2025, Nasserzareh filed an Answer.

On June 15, 2026, Nasserzareh filed a Cross-Complaint alleging (1) Breach of Contract; (2) Promissory Estoppel; (3) Conversion; (4) Promissory Fraud; (5) Constructive Fraud; (6) Assault; and (7) Battery.

On August 3, 2026, Baladehei filed the instant Demurrer with Motion to Strike.

On September 2, 2026, Nasserzareh filed its Opposition.

On September 9, 2026, Baladehei filed his Replies.

III. MEET AND CONFER AND TIMELINESS

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Defendant can demur within the same time it has to answer the complaint, i.e., 30 days after service, unless extended by stipulation or court order. (See Code Civ. Proc. § 430.40(a).)

Nasserzare argues the Court should not consider the untimely Demurrer and Motion to Strike since they were filed more than 19 days after the deadline, Baladehei failed to appear for the Case Management Conference on March 18, 2026, and has not responded to Nasserzare's discovery served over two months ago. (See Opp. at 1:6-16.)

Baladehei argues the Court can consider the untimely Demurrer whereas here Nasserzare's substantial rights are unaffected. (See Reply at 2:16-21 citing Jackson v. Doe (2011) 192 Cal.App.4th 742, 750.)

Here, there is no meet and confer declaration filed. However, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer." (Id., § 430.41.)

As to untimeliness, an untimely demurrer may be considered by the court in its discretion. (See Jackson, 192 Cal.App.4th at 750 [affirming trial court's decision to consider a demurrer filed 8 days after the 30-day period where such exercise of discretion did not affect the substantial rights of the parties].) Here, the Cross-Complaint was served on June 15, 2026, the deadline to respond was July 15, 2026, and the demurrer and MTS were filed on August 3, 2026. The instant demurrer and motion to strike were filed 19 days after the 30-day deadline. There is no explanation as to the delay, Baladehei only argues the Court has discretion to consider it.

In the interest of judicial efficiency and after determining Nasserzare's substantial rights would not be affected in considering the demurrer, the Court exercises its discretion to consider the untimely demurrer and motion to strike.

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IV. DEMURRER

A. Legal Standard

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] "[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded." (Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) A demurrer can only be sustained when it disposes of an entire cause of action. (See Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See *id.*) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

B. Analysis

1. Third Cause of Action: Conversion

“Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.” (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240.)

Baladehei argues the conversion claim fails because it cannot be maintained as a direct claim, as currently plead. Baladehei argues Nasserzare alleges funds were withdrawn from Haana Inc., fund which are corporate property. (See Dem. at 6:8-10, citing *PacLink Communications Internat., Inc. v. Superior Court* (2001) 90 Cal.App.4th 958, 964–966.) Baladehei argues the Cross-Complaint does not assert a derivative claim as it lacks allegations of compliance with Corporations Code § 800,[2] which applies to actions brought in the name of a corporation. (See *id.*, at 6:12-16.) Baladehei also argues the Cross-Complaint fails to join Haana Inc., the real party in interest. (See *id.*, at 6:18-23.)

In opposition, Nasserzare argues the conversion claim is sufficiently pled as it alleges Baladehei removed over \$100,000 from an account set up in Nasserzare’s name and that she is Haana Inc.’s sole owner. (See Opp. at 11:17-12:8, citing *Jones v. H.F. Ahmanson & Co.* (1969) 1 Cal.3d 93, 107-09, and *Holistic Supplements, LLC v. Stark* (2021) 61 Cal.App.5th 530, 542.)

In reply, Baladehei argues that Nasserzare was the sole owner does not make the alleged converted funds from Haana Inc. her property. (See Reply at 3:3-4.) Baladehei distinguishes the authority Nasserzare cited arguing *Jones* concerned a rule for minority shareholders whose value is diverted, not a license for a sole shareholder to claim the corporation’s revenue as her own and *Holistic* concerned conversion of a plaintiff’s own LLC membership interest, which was personal property belonging to her individually. (See *id.*, at 3:4-14.) Baladehei argues the *Holistic* Court expressly distinguished *PacLink*, where diversion of entity assets constituted injury to the entity, not the member. (See *id.*)

The Court finds the conversion claim is insufficiently stated. “In determining whether an individual action as opposed to a derivative action lies, a court looks at “the gravamen of the wrong alleged in the pleadings.” (*PacLink*, 90 Cal.App.4th at 965 [the gravamen of the wrong alleged is an injury to *PacLink*—1 (fraudulent transfer of its assets) which resulted incidentally in an injury to plaintiffs (diminution in the value of their ownership interest as LLC members) and thus claim was improperly pled as a personal cause of action].)

Here, the Cross-Complaint alleges Baladehei opened a business checking account and a credit card in Nasserzare’s name for Haana Inc. and a joint checking account in the name of both Baladehei and Nasserzare. (See XC, ¶¶ 19-20.) The Cross-Complaint alleges “Nasserzare, as the sole owner of Haana Inc., had the right to immediate possession of all funds and revenue received by Haana Inc.” (XC, ¶ 48.) The Cross-Complaint alleges Baladehei withdrew funds from Haana Inc.’s bank account, diverting the money to himself and to his corporate entities, and utilizing Haana Inc.’s credit card. (See *id.*, ¶¶ 22, 24, 31, 49.) The Court finds the gravamen of the claim is injury to Haana Inc., as the Cross-Complaint alleges Baladehei converted Haana Inc.’s assets. Thus, any injury to Nasserzare as sole owner of Haana Inc. is incidental to the injury suffered by the corporation. Accordingly, Nasserzare’s conversion claim is improperly pled as a direct claim rather than a derivative claim.

Thus, the Court SUSTAINS Baladehei’s Demurrer to the Third Cause of Action for Conversion WITH LEAVE TO AMEND.

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2. Fourth Cause of Action: Promissory Fraud

"The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Hinesley v. Oakshade Town Ctr.* (2005) 135 Cal.App.4th 289, 294.)

"[I]n a promissory fraud action, to sufficiently allege defendant made a misrepresentation, the complaint must allege (1) the defendant made a representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e., the promise was false. To sufficiently plead the first requirement, that the defendant made a promise, the complaint must state facts which show how, when, where, to whom, and by what means the representations were tendered. As for the second requirement, the falsity of that promise is sufficiently pled with a general allegation the promise was made without an intention of performance." (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060 (cleaned up, emphasis in original).)

Baladehei argues the promissory fraud claim lacks the requisite specificity (where the promise was made, how it was communicated, or the specific occasion), the scienter allegation is conclusory, and the damages allegations do not identify what loss was personally sustained by Nasserzare as opposed to damages from the alleged depletion of Haana's accounts. (See Dem. at 7:8-24; Reply at 3:24-4:4.)

Nasserzare argues the Cross-Complaint alleges an alleged false misrepresentation communicated orally from Baladehei to Nasserzare in December 2023. (See Opp. at 8:21-27.) Nasserzare argues the Cross-Complaint pleads the scienter element by alleging Baladehei's hasty repudiation by immediately removing the funds from the account. (See *id.*, at 9:1-10.) Nasserzare argues the claim seeks to recover what she personally gave up in reliance on a promise made to her individually. (See *id.*, at 9:11-17.)

Here the Cross-Complaint alleges "In or around December 2023, Baladehei told Nasserzare that he was setting up a business solely in Nasserzare's name called Haana Inc" and that "he would take care of everything for Haana Inc., including business operations and investing money into Haana Inc." (XC, ¶¶ 10, 13, 36, 55.) Nasserzare alleges "Baladehei never intended to perform this promise when he made it. Immediately after making this promise to Nasserzare, Baladehei began withdrawing funds from Haana Inc.'s checking account far in excess of his initial investment in violation of his promise to Nasserzare and without her consent or authorization." (*Id.*, ¶ 56.) The Court finds these allegations are sufficiently particular to allege Baladehei made an oral promise to Nasserzare during December 2023. By sufficiently pleading Baladehei's promise was false at the time he made it, Nasserzare also sufficiently pled the element of scienter. (See *Beckwith*, 205 Cal.App.4th at 1060 [falsity of the promise is sufficiently pled with a general allegation the promise was made without an intention of performance].) However, the Cross-Complaint fails to allege where the promise was allegedly made.

The Cross-Complaint alleges Baladehei intended for Nasserzare to rely on his promise so he could use her name "for purposes of competing against his other businesses in violation of Amazon and Ebay policies" and so that Nasserzare would "be completely reliant on Baladehei so that he could control her." (XC, ¶ 57.) The Cross-Complaint alleges Nasserzare relied on Baladehei's promise and did not pursue other employment or income, thus resulting in damages of no less than \$100,000. (See *id.*, ¶¶ 58-60.) The Court notes the Cross-Complaint alleges Nasserzare suffered the same damages under each cause of action. (See *id.*, ¶¶ 39, 46, 51, 60, 68, 76, 82.) The Court finds on the face of the pleading, the damages appear to arise from Nasserzare foregoing employment in reliance on receiving funds from Haana, Inc., and Baladehei's conversion of funds from the corporation, as this claim incorporates all preceding allegations. The Court agrees with Baladehei the alleged damages are not sufficiently specific to the damages attributable to Nasserzare individually. (See *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 202, 132 ["If the existence—and not the amount—of damages alleged in a fraud pleading is 'too remote, speculative or uncertain,' then the pleading cannot state a claim for relief."].)

Thus, the Court SUSTAINS Baladehei's Demurrer to the Third Cause of Action for Promissory Fraud WITH LEAVE TO AMEND.

3. Fifth Cause of Action: Constructive Fraud

The elements of constructive fraud are (1) fiduciary, confidential or special relationship; (2) breach (e.g., nondisclosure); (3) intent to deceive; (4) reliance; (5) causation; and (6) damages. (See *Younan v. Equifax Inc.* (1980) 111 Cal.App.3d 498, 516, 517, fn. 14; *Tyler v. Children's Home Soc'y* (1994) 29 Cal.App.4th 511, 548-549 [relationship need not be fiduciary one, but may be confidential].) "For purpose of showing constructive fraud, a "confidential relationship" exists when one party gains confidence of the other and purports to act or advise with other's interest in mind." (*Younan*, 111 Cal.App.3d at 517, fn. 15.)

Baladehei argues allegations the parties were in a romantic relationship, Baladehei had more business experience, and Nasserzare trusted him to manage Haana, Inc.'s accounts are insufficient to allege a confidential relationship. (See Dem. at 8:9-16.) Baladehei also argues the alleged damages from Baladehei's alleged removal of funds from Haana, Inc.'s financial accounts do not allege Nasserzare's personal damages. (See *id.*, at 8:17-23.)

Nasserzare argues the claim sufficiently alleges a confidential relationship based on their romantic relationship and Baladehei's assumed control over Nasserzare's finances. (See Opp. at 10:6-25, 11:1-2 citing *Hudson v. Foster* (2021) 68 Cal.App.5th 640, 662-663 and *Barrett v. Bank of America* (1986) 183 Cal.App.3d 1362, 1369.) Nasserzare argues the alleged damages were suffered by her personally. (See *id.*, at 11:6-8.)

Baladehei argues *Hudson* involved a defendant who assumed responsibility for managing the plaintiff's affairs for her benefit and in *Barrett*, the defendant held itself out as advising the plaintiff on the very transaction at issue. (See Reply at 4:5-16.)

Here, the Cross-Complaint alleges Baladehei presented himself as someone who had superior knowledge regarding business matters and informed Nasserzare that he would take care of everything for Haana Inc., including business operations and investing money into Haana Inc. (See XC, ¶¶ 13, 36, 64.) The Cross-Complaint alleges Baladehei breached his duty to Nasserzare by removing funds from Haana Inc.'s financial accounts and because of this misconduct, Nasserzare suffered damages of no less than \$100,000. (See *id.*, ¶¶ 66, 68.) The Court finds, for purposes of a constructive fraud claim, that a confidential relationship is sufficiently alleged based on the parties' historical relationship, Nasserzare's confidence in Baladehei's business experience, Baladehei's promise to undertake the management of Haana Inc.'s business operations and investments which he formed under Nasserzare's name, and Baladehei's opening bank accounts under her name. (See *Younan*, 111 Cal.App.3d at 517, fn. 15; *Huy Fong Foods, Inc. v. Underwood Ranches, LP* (2021) 66 Cal.App.5th 1112, 1122 [A confidential relationship may be founded on moral, social, domestic, or merely a personal relationship].)

However, the Court agrees with Baladehei the alleged damages appear to arise from injury to Haana Inc., and thus these are insufficiently alleged as personal damages.

Thus, the Court SUSTAINS Baladehei's Demurrer to the Fifth Cause of Action for Constructive Fraud WITH LEAVE TO AMEND.

V. MOTION TO STRIKE

A. Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any

pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See *id.* at § 436(b).) This provision is for "the striking of a pleading due to improprieties in its form or in the procedures pursuant to which it was filed." (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528 [emphasis in original].) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See Code Civ. Proc. at § 437.)

B. Analysis

Baladehei moves to strike allegations and prayer for relief related to Penal Code § 496(c).[3] (See Notice at 2:8-11.) The Court DENIES the Motion as moot as these allegations and prayer are supported by the third cause of action which did not survive demurrer.

VI. CONCLUSION

Based on the foregoing, the Court SUSTAINS Baladehei's Demurrer to the Third Cause of Action for Conversion, Third Cause of Action for Promissory Fraud, and Fifth Cause of Action for Constructive Fraud WITH LEAVE TO AMEND.

The Court DENIES the Motion to strike as moot.

Nasserzare has leave to file an amended Cross-Complaint by October 2, 2026.

In addition, the Court advances the hearing on the Motions to Compel Responses to Form Interrogatories and Requests for Production from September 24, 2026, to September 23, 2026, at 8:30 a.m.

IT IS SO ORDERED.

DATED: September 16, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] Corporations Code § 800 provides "[n]o action may be instituted or maintained in the right of any domestic or foreign corporation by any [shareholders] . . . unless . . . [t]he plaintiff alleges in the complaint with particularity plaintiff's efforts to secure from the board such action as plaintiff desires, or the reasons for not making such effort, and alleges further that plaintiff has either informed the corporation or the board in writing of the ultimate facts of each cause of action against each defendant or delivered to the corporation or the board a true copy of the complaint which plaintiff proposes to file." (Corp. Code, § 800(b)(2); see *Bader v. Anderson* (2009) 179 Cal.App.4th 775, 790.) Failing to comply with the statutory requirements for bringing a derivative action deprives the shareholder of standing. (See *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 127.)

[3] Penal Code § 496(c) provides "Any person who has been injured by a violation of subdivision (a) or (b) may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney's fees."